

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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REGINA KANKINZA PRITCHETT,

Plaintiff,

-v-

THE CITY OF NEW YORK, New York City Police
Department Officer ("P.O.") MATTHEW NOFTSIER
(Shield No. 21888), P.O. FELBER CARPIO (Shield
No. 12241), and Sgt. SEAN MCLAINE (Shield
No. 1020),

Defendants.
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**AMENDED COMPLAINT
AND DEMAND
FOR A JURY TRIAL**

Index No. 15-CV-2628(GHW)(RLE)

Plaintiff REGINA KANKINZA PRITCHETT, through her attorney Gillian Cassell-Stiga
of Rankin & Taylor, PLLC as and for her complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the First, Fourth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983.
2. Plaintiff REGINA KANKINZA PRITCHETT'S rights were violated when officers of the NEW YORK CITY POLICE DEPARTMENT ("NYPD") unconstitutionally and without any legal basis arrested her without justification. By reason of defendants' actions, including their unreasonable and unlawful seizure of her person, she was deprived of her constitutional rights.
3. Plaintiff seeks an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction over federal claims pursuant to 28 U.S.C. §§ 1331, 1343(a)(3-4). This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the First, Fourth, and Fourteenth Amendments to the Constitution of the United States.
5. Venue is proper pursuant to 28 U.S.C. § 1391(b)(2) in that plaintiff's claim arose in the Southern District of New York.
6. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. §1988.

PARTIES

7. Plaintiff REGINA KANKINZA PRITCHETT ("PRITCHETT") was at all times relevant to this action a resident of the County of Manhattan in the State of New York.
8. Defendant THE CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.
9. New York City Police Department ("NYPD") Officer ("P.O.") MATTHEW NOFTSIER (Shield No. 21888) ("NOFTSIER"), P.O. FELBER CARPIO (Shield No. 12241) ("CARPIO"), and Sgt. SEAN MCLAINE (Shield No. 1020) ("MCLAINE") (referred to collectively as the "individual defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD.
10. The individual defendants are being sued herein in their individual capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
12. The individual defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.
13. At all relevant times, the individual defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

14. Ms. PRITCHETT was arrested on or about September 14, 2014 at approximately midnight at or about 504 West 167th Street in the County and State of New York.
15. Immediately prior to her arrest, Ms. PRITCHETT was standing on the stoop outside her apartment building talking with some friends.
16. Individual defendants approached the group and ordered them to all leave.
17. All the nonresident individuals on the stoop left the stoop and walked away.
18. Ms. PRITCHETT remained on the stoop of her apartment building and informed the individual defendants that she was a lawful resident of the building.
19. The officers requested Ms. PRITCHETT produce her identification.

20. Having only stepped out of her apartment onto her own stoop, Ms. PRITCHET did not have identification on her person. She informed the officers that her identification could be retrieved from within the apartment.
21. Nonetheless, the individual defendants arrested Ms. PRITCHETT.
22. Ms. PRITCHETT was charged with Disorderly Conduct (P.L. § 240.20).
23. The accusatory instrument stated that she was causing “public inconvenience of entering and leaving building” and refused to disperse.
24. On or about January 14, 2015, the charges against Ms. PRITCHETT were dismissed.
25. As a result of her handcuffing and arrest, Ms. PRITCHETT experienced pain, suffering, mental anguish, and humiliation.

**FIRST CLAIM FOR RELIEF
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
(Against all Defendants)**

26. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
27. Defendants, under color of state law, subjected the plaintiff to the foregoing acts and omissions, thereby depriving plaintiff of her rights, privileges and immunities secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of her person; (b) freedom from arrest without probable cause; (c) freedom from retaliatory arrest (d) false imprisonment; (e) freedom from the lodging of false charges against her by police officers; (f) freedom from having police officers fabricate evidence against her; and,

28. Defendants' deprivation of plaintiff's constitutional rights resulted in the injuries and damages set forth above.

SECOND CLAIM FOR RELIEF
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL
VIOLATIONS
(Against the City of New York)

29. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

30. At all times material to this complaint, defendant THE CITY OF NEW YORK had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

31. At all times material to this complaint, defendant THE CITY OF NEW YORK failed to properly train, screen, supervise, or discipline its employees and police officers, including defendants P.O. NOFTSIER, P.O. CARPIO and Sgt. MCLAINE, and failed to inform the individual defendant's supervisors of their need to train, screen, supervise or discipline the individual defendants.

32. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, and Fourteenth Amendments.

33. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

JURY DEMAND

1. Plaintiff demands a trial by jury in this action on each and every one of her damage claims.

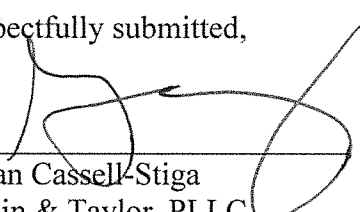
WHEREFORE, plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That she be compensated for violation of her constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That she be awarded punitive damages against the individual defendants; and
- c. That she be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York
August 3, 2015

Respectfully submitted,

By:



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General Information

Court	United States District Court for the Southern District of New York; United States District Court for the Southern District of New York
Federal Nature of Suit	Civil Rights - Other[440]
Docket Number	1:15-cv-02628